

3	Saadeh vs. Bdair 2022-01248722	Motion to Be Relieved as Counsel of Record The motion of attorney Robert A. von Esch IV and David V. Luu of von Esch Law Group ALC to withdraw as attorney of record for Defendant Goldenlinens, LLC is GRANTED and effective upon filing of the proof of service on client. (Code Civ. Proc. § 284, CRC 3.1362.) Moving attorney is to give notice.
7	Strategic Business Holdings, INC. vs. Zoom Business Brokers 2024-01446779	Motion for Summary Judgment and/or Adjudication As a preliminary statement, the court notes that the issues of whether or whether not a fiduciary duty existence is a question of law for the court to decide. <i>Clake v. Hoek</i> (1985) 174 Cal.App.3d 208. Conflicting expert opinion testimony on whether a defendant owed a duty to a plaintiff does not create a disputed factual issue on the existence of such duty, because duty remains a matter of law for the court to decide. <i>Clarke v. Hoek</i> (1985) 174 Cal.App.3d 208. Whether such a duty exists and the scope of that duty are questions of law, which courts consider de novo. <i>Lorenzo v. Calex Engineering, Inc.</i> (2025) 110 Cal.App.5th 49. With regard to Strategic’s proposed “issue of duties,” many of the items appear to conflate multiple questions—whether the agreement modified common law duties, what the scope of those duties were, and whether those duties included disclosure of the buyer's intent to violate federal law—without completely disposing of the ultimate question of whether Zoom owed a fiduciary duty to Strategic. As discussed below, not all of the issues are entirely appropriate for adjudication. Plaintiff Strategic Business Holdings, Inc.’s motion for summary adjudication as to its